

CODE OF BALTIMORE REGULATIONS ANNOTATED (COBRA) REGISTER



ISSUE DATE: 15 February 2025

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Pursuant to General Provisions Article, § 4-303 of the Baltimore City Code, this issue contains all documents required to be published for this issue date.

Information about the COBRA Register and COBRA

COBRA REGISTER

The COBRA register is an official City publication. The COBRA register acts as a temporary supplement to the Code of Baltimore Regulations Annotated. Any change to the text of regulations published in COBRA must first be published in the COBRA Register.

CODE OF BALTIMORE REGULATIONS ANNOTATED (COBRA)

COBRA is the official compilation of all regulations issued by agencies of the City of Baltimore. The COBRA Register serves as COBRA's temporary supplement, publishing all proposed changes to regulations.

INCORPORATION BY REFERENCE

Incorporation by reference is a legal device by which a document is made part of COBRA by formal reference. The text of the incorporated document will not appear in COBRA, but the provisions of the incorporated document are enforceable as a COBRA regulation. Documents incorporated by reference will appear in the COBRA Register with a notice designating it as a document incorporated by reference.

PUBLIC PARTICIPATION IN THE REGULATION PROCESS

Baltimore City residents may participate in the process by which City regulations are proposed, adopted, amended, or repealed by submitting data or opinions on proposed regulations to the promulgating agency (see "Opportunity for Public Comment" section on the notice page for all proposed regulations contained in the COBRA Register).

ISSUE AND DEADLINE DATES THROUGH DECEMBER 2025[†]

ISSUE DATE	*DEADLINE FOR PROPOSED REGULATION
January 15, 2025	January 8, 2025
**February 15, 2025	**February 8, 2025
**March 15, 2025	**March 8, 2025
April 15, 2025	April 8, 2025
May 15, 2025	May 8, 2025
**June 15, 2025	**June 8, 2025
July 15, 2025	July 8, 2025
August 15, 2025	August 8, 2025
September 15, 2025	September 8, 2025
October 15, 2025	October 8, 2025
**November 15, 2025	**November 8, 2025
December 15, 2025	December 8, 2025

[†] Please note that this table is provided for planning purposes only. The Department of Legislative Reference (DLR) cannot guarantee that submissions will be published by an agency's desired publication date. Circumstances related to workload and staffing may prevent adherence to this schedule.

* Please note that the deadlines provided for the submission of a proposed regulation indicates the submission of a regulation in its final form for publication, including all required revisions from DLR and approvals from DLR, the Department of Law, and the Office of the City Administrator. DLR advises a 10-week lead time for this process.

**For dates when the submission of a proposed regulation to DLR would fall over a weekend, the proposed regulation will be due the Friday prior; for dates when the submission of a proposed regulation to DLR would fall on a Federal holiday, the proposed regulation will be due the business day prior.

INDEX OF COBRA TITLES AFFECTED IN THIS ISSUE

COBRA Title Number and Name

21 – Department of Public Works

NOTICES OF FINAL ACTION IN THIS ISSUE

There are no notices of final action published in this issue.

FOR REGULATIONS PROPOSED FOR AMENDMENT THIS REGISTER

[Bracketed] text indicates an item stricken from the regulation

Italic text indicates an item added to the regulation

COBRA Register. Publication of the Department of Legislative Reference, 100 Holliday Street, Suite 626, Baltimore, MD, 21201. Tel. 410-396-4730. **Brandon Scott**, Mayor; **Benjamin Guthorn**, Director, Department of Legislative Reference; **Hanna Navarrete Naugle**, City Regulations Lead; **Andrew Daugherty**, Legislative Services Technician; **Anita Evans**, Legislative Reference Librarian.

TITLE 21
DEPARTMENT OF PUBLIC WORKS
Subtitle 02 WATER AND WASTEWATER
Chapter 04 WATERSHED REGULATIONS

Authority: City Code Article 24, §§ 1-1, 21-1

Notice of Proposed Action

The Director of the Baltimore City Department of Public Works proposes to enact Chapter .04 WATERSHED REGULATIONS under COBRA 21.02.04.

Statement of Purpose

The purpose of this action is to:

- (1) Update existing watershed regulations to conform with new Code of Baltimore Regulations Annotated style requirements;
- (2) Define terms used in the previously enacted watershed regulations; and
- (3) Establish new standards for boat engines being utilized within the City's Water Quality Management Areas.

Changes were initiated in accordance with City Code Article 24, §§ 1-1, 21-1

Opportunity for Public Comment

Comments may be sent to CAITLIN RAYHART, ASSISTANT GENERAL COUNSEL, OFFICE OF LEGAL AND REGULATORY AFFAIRS, DEPARTMENT OF PUBLIC WORKS, 200 N. HOLLIDAY ST., RM. 203, BALTIMORE, MD, 21202, or emailed to WATERSHEDREGULATIONS@BALTIMORECITY.GOV within 30 days of the date of publication of this Register.

KHALIL ZAIED
DIRECTOR

Title 21 DEPARTMENT OF PUBLIC WORKS

Subtitle 02 WATER AND WASTEWATER

CHAPTER 04 WATERSHED REGULATIONS

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TITLE 21 DEPARTMENT OF PUBLIC WORKS

Subtitle 02 WATER AND WASTEWATER

CHAPTER 04 WATERSHED REGULATIONS

Authority: City Code, Article 24 §§ 1-1, 21-1

21.02.04.01

.01 Scope.

A. This chapter establishes rules for:

(1) Recreational uses of the:

(a) Loch Raven Reservoir, including its:

(i) Tributaries; and

(ii) Surrounding property.

(b) Prettyboy Reservoir, including its:

(i) Tributaries; and

(ii) Surrounding property.

(c) Liberty Reservoir, including its:

(i) Tributaries; and

(ii) Surrounding property.

(2) Protection of:

(i) The water supply;

(ii) Watershed property; and

(iii) The public.

B. These regulations govern City water quality management areas under control of the City and administered by the Department of Public Works, including:

(1) Reservoirs; and

(2) Adjacent watersheds.

.02 Definitions.

A. In this chapter, the following terms have the meanings indicated.

B. Terms Defined.

(1) “Baltimore County” means the County Council and municipal government of Baltimore County, Maryland.

(2) Baltimore City reservoir.

(a) “Baltimore City reservoir” means a reservoir owned and operated by Baltimore City.

(b) “Baltimore City reservoir” includes:

(i) Prettyboy Reservoir;

(ii) Liberty Reservoir; and

(iii) Loch Raven Reservoir.

(3) “Baltimore Environmental Police” means a sworn police officer appointed by the Director to protect persons and natural resources within a water quality management area.

(4) “City” means the Mayor and City Council of Baltimore.

(5) “Deer trail” means a trail that has been worn down by the passage of deer and other wildlife.

(6) “Department” means the Baltimore City Department of Public Works.

(7) “Director” means the Director of the Baltimore City Department of Public Works.

(8) “Double bottom” means an additional layer of structure below the main bottom of a watercraft.

(9) “Environmentally sensitive area” means a location within a water quality management area with ecologically vulnerable features, including a:

(a) Wetland;

(b) Stream; or

(c) Steep slope.

(10) “Firearm” has the meaning stated in § 14-101 of the City Code Health Article.

(11) “Fish refuge area” means:

- (a) The area south of the Route 26 Bridge at Liberty Reservoir;
- (b) The area south of the Loch Raven Drive Bridge at Loch Raven Reservoir; and
- (c) An area within 1500 feet of the dam at Prettyboy Reservoir.

(12) “Flotation material” means a substance made of composite materials designed to increase buoyancy in a watercraft.

(13) “Geocaching” means to hide a small container or other item at discrete locations for the purpose of using GPS coordinates to locate the item.

(14) Hunt.

- (a) “Hunt” means to pursue or attempt to pursue a bird or mammal to personal possession.
- (b) “Hunt” includes the pursuit or attempted pursuit of a bird or mammal through the act of:
 - (i) Capturing;
 - (ii) Catching;
 - (iii) Killing;
 - (iv) Giggling;
 - (v) Trapping; and
 - (vi) Shooting.

(15) “Livestock” means a domesticated animal ordinarily raised in an agricultural setting including:

- (a) Cattle;
- (b) Sheep;
- (c) Horses; and
- (d) Goats.

(16) “Magnet fishing” means to remove or attempt to remove a metal object from a body of water by use of a magnet attached to the end of a rope.

(17) “DNR” means the Maryland Department of Natural Resources.

(18) Motorized vehicle.

(a) “Motorized vehicle” means a mode of transportation powered by an internal engine by which a person or property may be transported on a roadway.

(b) “Motorized vehicle” includes:

(i) An electronic bicycle;

(ii) A dirt bike;

(iii) An all-terrain vehicle;

(iv) A snowmobile; and

(v) A vehicle being towed by another motorized vehicle.

(19) Nonlethal firearm.

(a) “Nonlethal firearm” means a device that:

(i) Fires nonlethal ammunition using compressed air; and

(ii) Is intended to incapacitate, but not kill, a target.

(b) “Nonlethal firearm” includes:

(i) An air rifle; and

(ii) A paintball gun.

(20) “Organized group activity” means an event that is:

(a) coordinated by a verifiable person, company, or entity, as defined by these regulations; and

(b) scheduled for a particular date and time.

(21) “Paddle boat” means a watercraft that is propelled through the use of a paddle wheel.

(22) “Pedal kayak” means a watercraft with a closed deck that is propelled by foot pedals that drive a propeller or fins.

(23) “Permit holder” means a person who has obtained a permit to operate a watercraft at a water quality management area in accordance with this chapter from:

(a) The Department; or

(b) Baltimore County.

(24) Person.

(a) “Person” has the meaning stated in City Code General Provisions Article, § 1-107.

(b) “Person” includes a governmental entity or an instrumentality or unit of a governmental entity.

(25) Personal flotation device.

(a) “Personal flotation device” means a piece of equipment used to prevent drowning.

(b) “Personal flotation device” includes a:

(i) Life jacket;

(ii) Life vest;

(iii) Life belt;

(iv) Flotation aid;

(v) Buoyant cushion; and

(vi) Ring buoy.

(26) “Polluting” means:

(a) Contaminating a Baltimore City reservoir or a tributary;

(b) Storing hazardous materials in a manner that threatens the public water supply; or

(c) Altering the water in a Baltimore City reservoir or tributary in a manner that could harm:

(i) Public health;

(ii) Public safety; or

(iii) The welfare of local wildlife.

(27) “Reservoir watershed” means the source water area for the Baltimore Metropolitan Supply as defined by the Baltimore Metropolitan Council.

(28) “Right of entry agreement” means a contract between a person and the City of Baltimore which allows access during a prescribed period of time for a defined group of people to engage in specific activities within a WQMA.

(29) “Smoke” means to:

- (a) Burn or carry a lit tobacco product;
- (b) Burn or carry a lit cannabis product; or
- (c) Inhale vapors from or otherwise allow vapors to be emitted from an electronic smoking device.

(30) “State” means the State of Maryland.

(31) “Verifiable” means possessing documentation which is recognized as valid by a state or local government as a means of establishing the identity of a person, organization, or other entity.

(32) “Watercraft” means a vessel licensed by the State:

- (a) Designed for travel across or through a body of water; and
- (b) Powered by a means of propulsion in accordance with this chapter.

(33) “Watercraft launch area” means a designated ramp for watercraft launch and recovery.

(34) Water Quality Management Area (WQMA).

(a) “Water quality management area” means a reservoir or adjoining land controlled or owned by the City of Baltimore

(b) “Water quality management area” includes:

- (i) A leased property within a WQMA boundary;
- (ii) Woods within a WQMA boundary;
- (iii) A utility right-of-way within a WQMA boundary;
- (iv) Infrastructure within a WQMA; and
- (v) Infrastructure required to direct water from a reservoir to a water treatment facility.

(35) “Watershed” has the meaning stated in City Code Article 7, § 21-1(aa).

(36) “Woods road” means an unpaved road in a water quality management area built and maintained by the City.

.03 Watercraft Specifications.

A. In addition to the vessel specifications in regulation .05 of this chapter, a permit holder operating a watercraft in a WQMA shall ensure that the watercraft:

- (1) Is in compliance with applicable federal and State boating safety requirements;
- (2) Is buoyant if submerged through use of:
 - (a) Permanently installed air chambers; or
 - (b) Flotation materials.
- (3) Is constructed of:
 - (a) Marine plywood a minimum of $\frac{1}{4}$ inch thick;
 - (b) Wood plank;
 - (c) Metal;
 - (d) Fiberglass; or
 - (e) Plastic.
- (4) Is propelled by:
 - (a) Rowing;
 - (b) Sculling;
 - (c) Pedaling; or
 - (d) A battery-powered electric motor in accordance with §B of this regulation.
- (5) Is equipped with:
 - (a) One wearable personal flotation device for each person on board;
 - (b) One throwable personal flotation device for watercraft longer than 16 feet;
 - (c) A means of producing a sound such as a:

(i) Whistle;

(ii) Bell; or

(iii) Horn.

(d) Closed compartments under seats or thwarts;

(e) Double bottoms that:

(i) Are not sealed to the hull; or

(ii) Are not completely filled with flotation materials.

(f) Closed storage compartments; and

(g) Permanently installed fuel tanks that contain a fire extinguisher.

B. A permit holder operating a watercraft with a battery-powered electric motor in a WQMA shall ensure the battery powered electric motor does not exceed a maximum output of 18kW.

C. The City may remove a watercraft from a WQMA whose occupants are found in violation of this chapter.

.04 Watercraft Specifications – Prohibitions.

A permit holder may not operate the following types of watercraft in a WQMA:

- A. A watercraft with a gasoline-powered motor;
- B. A watercraft propelled by sails;
- C. A pontoon boat;
- D. A paddle boat;
- E. A stand-up paddle board;
- F. A watercraft with an electric motor that does not conform to the manufacturer's specification; or
- G. A watercraft that is:
 - (1) Inflatable;
 - (2) Foldable; or
 - (3) Collapsible.

.05 Watercraft Specifications – Vessel Specific.

A. Boats.

A permit holder operating a boat in a WQMA shall ensure the boat has:

- (1) A minimum length of 12 feet;
- (2) A maximum length of 20 feet;
- (3) A beam width of no less than 48 inches; and
- (4) A depth of no less than 18 inches.

B. Canoes.

A permit holder operating a canoe in a WQMA shall ensure the canoe has:

- (1) A minimum length of 12 feet;
- (2) A maximum length of 20 feet; and
- (3) A beam width of at least 35 inches.

C. Kayaks.

(1) A permit holder operating a kayak in a WQMA shall ensure the kayak has:

- (a) A minimum length of 12 feet; and
- (b) A maximum length of 20 feet.

(2) A permit holder may operate a pedal kayak in a WQMA.

(3) Kayaks designed by the manufacturer to have insertable motors may be operated in a WQMA if:

- (a) no motor is used in the kayak; or
- (b) an electric motor complying with Regulation .03 of this chapter is used in the kayak.

D. Rowing Shell.

A permit holder operating a rowing shell in a WQMA shall ensure the rowing shell has:

- (1) A minimum length of 12 feet; and
- (2) A maximum length of 20 feet.

.06 Watercraft Permits – Baltimore City Reservoirs.

A. A person shall apply for a watercraft permit to operate a vessel at:

- (1) Liberty Reservoir;
- (2) Prettyboy Reservoir; and
- (3) Loch Raven Reservoir.

B. The Department shall only issue a watercraft permit for use at:

- (1) Liberty Reservoir; and
- (2) Prettyboy Reservoir.

C. A person may apply for a watercraft permit for Loch Raven Reservoir through Baltimore County.

D. A person applying for a watercraft permit issued by the Department shall:

- (1) Submit to the Department:
 - (a) A completed and signed permit application form; and
 - (b) An affidavit certifying that the watercraft for which the permit is sought will be used only at a WQMA; and
- (2) Remit a permit application fee of \$60.00, made payable to the Director of Finance via:
 - (a) Certified check;
 - (b) Bank check; or
 - (c) Money order.

E. The City may reinstate a moratorium on the issuance of a permit for the use of private watercraft at a WQMA.

F. The City may not issue a permit for watercraft:

(1) Equipped with:

(a) An internal combustion motor; or

(b) A gasoline motor.

(2) Longer than 20 feet.

G. Permit Revocation.

The City may revoke a permit if the permit holder is found in violation of a:

(1) Federal law;

(2) State law;

(3) City law; or

(4) This chapter.

.07 Watercraft Use in WQMA.

A. A person may operate a watercraft in a WQMA if that person:

- (1) Has obtained a permit in accordance with .06 of this chapter; and
- (2) Ensures the watercraft complies with the provisions of .06 of this chapter.

B. A permit holder operating a watercraft in a WQMA:

(1) Shall ensure that:

- (a) Launch and recovery of the watercraft occurs at designated ramps;
- (b) The watercraft is securely locked at a designated area when not in use; and
- (c) The watercraft is kept between the chain or cable and the water.

(2) May not:

(a) Allow an unaccompanied person under the age of 18 to operate or occupy the watercraft unless accompanied by the permit holder;

(b) Interfere with persons fishing; and

(c) Operate the watercraft:

(i) Between January 1 and February 28 annually, inclusive of leap years;

(ii) Between sunset and sunrise;

(iii) Between Liberty Road and Liberty Dam;

(iv) Within 1500 feet of Prettyboy Dam;

(v) With a number of occupants greater than authorized by the watercraft manufacturer;

(vi) When a body of water is frozen or partially frozen; and

(vii) Within a fish refuge area.

.08 Animals.

A. Pets.

A person may not:

- (1) Bring an unleashed pet into a WQMA; or
- (2) Allow a pet to swim in a reservoir.

B. Horses.

- (1) A person may ride a horse on an unpaved woods road in a WQMA.
- (2) A person may not ride a horse:
 - (a) Along a paved road, unless necessary to reach a woods road within a WQMA;
 - (b) Through a wetland within a WQMA;
 - (c) On the property of the:
 - (i) Pine Ridge Golf Course; or
 - (ii) Loch Raven Skeet and Trap Center.
 - (d) In general areas within a WQMA including:
 - (i) A picnic area;
 - (ii) A parking lot;
 - (iii) A police pistol range;
 - (iv) A maintenance facility area;
 - (v) A boat dock area;
 - (vi) An area between woods roads;
 - (vii) An environmentally sensitive area;
 - (viii) A wetland;

(ix) The area below a high-water line in a reservoir or tributary stream; and

(x) The reservoir or tributary stream.

B. Grazing and Free Roaming.

A person may not allow the grazing or free roaming of livestock at a WQMA.

21.02.04.09

.09 Fishing.

A. Except in a posted area, a person in possession of a Maryland Freshwater Sportfishing License may fish within a WQMA if the person complies with the provisions of this regulation.

B. In General.

(1) Fishing at a WQMA is permitted:

(a) Between the hours of sunrise and sunset; and

(b) From watercrafts between March 1 and December 31 annually.

(2) Fishing is permitted from the banks year-round.

(3) A person fishing may not drill through the ice to fish.

C. Vessels.

A person fishing at a WQMA may do so from a:

(1) Rowboat;

(2) Runabout type boat;

(3) Canoe; or

(4) Kayak.

D. Areas.

(1) A person fishing at a WQMA may fish from designated areas on the shore of a reservoir.

(2) A person fishing at a WQMA may not fish:

(a) Between Liberty Road and Liberty Dam;

(b) Within 1500 feet of Prettyboy Dam;

(c) In an area designated as a fish refuge area; or

(d) In an area where:

- (i) The banks are steep;
 - (ii) There are rock cliffs or promontories; or
 - (iii) There is danger of a person falling into the water with resultant risk of injury or drowning.
- (3) A person may only fish from a bridge in a WQMA on a designated platform provided at the following places:
- (a) The Dulaney Valley Road bridge at Loch Raven Reservoir, and
 - (b) The Deer Park/Nicodemus Road bridge at Liberty Reservoir.

E. Equipment.

- (1) A person fishing at a WQMA may use a:
- (a) Rod;
 - (b) Hook;
 - (c) Line; and
 - (d) Single artificial lure.
- (2) A person fishing at a WQMA may not use a:
- (a) Net;
 - (b) Bow;
 - (c) Spear; or
 - (d) Device other than those provided for in §E(1) of this regulation.

F. Prohibited Activities.

A person fishing at a WQMA may not:

- (1) Ice fish;
- (2) Magnet fish; or
- (3) Fish from a rowing shell.

21.02.04.10

.10 Hunting.

A. Bow Hunting.

(1) Except as provided in A(2) of this regulation, a person in possession of a Maryland hunting license may hunt with bow and arrow at a WQMA:

(a) With the applicable material required by DNR as set forth in:

- (i) The Hunting and Trapping in Maryland guide;
- (ii) The Liberty and Prettyboy Reservoirs Bow Hunting Permit; or
- (iii) The Loch Raven Reservoir Deer Bow Hunting Permit issued by DNR.

(b) Within designated bow hunting areas between:

- (i) One half-hour before sunrise during the season specified by DNR; and
- (ii) One half-hour after sunset during the season specified by DNR.

(c) With the use of a temporary or portable tree stand which the permit holder shall ensure is removed daily; and

(d) If gear intended to cover or obscure the face is removed:

- (i) Upon leaving a WQMA; and
- (ii) Within 100 yards of another person.

(2) A permit holder may bow hunt only white-tailed deer at Loch Raven Reservoir.

B. Location Prohibitions.

A permit holder may not hunt:

- (1) South of Liberty Road on the Baltimore County side of Liberty WQMA;
- (2) Southeast of Prettyboy Dam Road in the Prettyboy WQMA; or
- (3) Within 50 feet of the high water shoreline.

C. Sport Prohibitions.

A permit holder may not:

- (1) Trap;
- (2) Bait for deer or other wildlife;
- (3) Hunt waterfowl;
- (4) Build or occupy a hunting blind; or
- (5) Use a permanent tree stand.

.11 Other Recreational Activities.

A. Picnicking.

(1) Except as provided in §A(3) of this regulation, picnicking is permitted within a WQMA between sunrise and sunset.

(2) A person picnicking within a WQMA shall ensure personal refuse is removed from the area upon departure.

(3) A person picnicking within a WQMA may not:

(a) Picnic in:

(i) The Loch Raven Skeet and Trap Center;

(ii) The Pine Ridge Golf Course;

(iii) A Maryland State Police pistol range;

(iv) A Baltimore County Police pistol range;

(v) A watercraft launch area;

(vi) An area directly adjacent to storage or maintenance of City owned equipment or vehicles;

(vii) An area with steep banks;

(viii) An area with rocky promontories; or

(ix) An area where there is danger of a person falling into the water with resultant risk of injury or drowning.

(b) Use a heating source, including:

(i) A fire;

(ii) A gasoline or alcohol stove;

(iii) A propane grill or stove; and

(iv) A gasoline or charcoal grill;

B. Nonmotorized biking.

- (1) A person may operate a nonmotorized bicycle in a WQMA on a designated bicycle route.
- (2) A person operating a nonmotorized bicycle in a WQMA shall:
 - (a) Ensure the nonmotorized bicycle is equipped with a bell to be sounded upon approaching a:
 - (i) Curve; or
 - (ii) Crest of a hill.
 - (b) Yield the trail in the presence of a:
 - (i) Hiker; or
 - (ii) Horseback rider.
- (3) A person may not operate a nonmotorized bicycle in a WQMA:
 - (a) On a deer trail;
 - (b) On a designated bicycle route that is wet or muddy;
 - (c) At an excessive speed; or
 - (d) Through a:
 - (i) Wetland; or
 - (ii) Environmentally sensitive area.

C. Organized group activities.

A person may participate in an organized group activity within a WQMA if a fully executed Right of Entry Agreement is obtained from the Department in accordance with Regulation .12 of this chapter.

21.02.04.12

.12 Recreational Activities – Right of Entry Agreement.

- A. A person shall obtain a Right of Entry Agreement for an organized group activity in a WQMA.
- B. A person may execute a Right of Entry Agreement for a group activity in a WQMA by emailing the Office of Legal and Regulatory Affairs, using the contact information found on the Department website.

21.02.04.13

.13 Recreational Activities - Additional Prohibitions.

A person in a WQMA may not:

- A. Camp;
- B. Erect a structure, whether permanent or temporary;
- C. Climb a tree, except as provided in regulation .10 of this chapter;
- D. Rock climb or rappel;
- E. Swim in a reservoir;
- F. Wade in a reservoir;
- G. Remove:
 - (1) Geological material;
 - (2) Biological material; or
 - (3) An archaeological artifact.
- H. Use a metal detector;
- I. Skate or walk on frozen sections of the watershed;
- J. Engage in geocaching activities; or
- K. Bungee jump.

21.02.04.14

.14 Wildlife.

A person may not feed the wildlife at a WQMA.

21.02.04.15

.15 Trespassing.

A person may not enter:

- A. A WQMA from sunset to sunrise, except as provided in regulation .10 of this chapter;
- B. An area of a WQMA posted as closed or otherwise restricted; or
- C. A building or structure closed to the public.

21.02.04.16

.16 Weapons.

A person may not possess a firearm in a WQMA, unless the person is:

- A. Making lawful use of the Loch Raven Skeet and Trap Center; or
- B. A sworn police officer, including a member of the Baltimore Environmental Police.

21.02.04.17

.17 Disorderly Conduct.

A person may not interfere with City personnel or a City contractor conducting operations in a WQMA.

21.02.04.18

.18 Fires.

A person may not light or maintain a fire in a WQMA, including:

- A. A charcoal grill;
- B. A stove;
- C. A lantern; or
- D. A cooking fire.

21.02.04.19

.19 Refuse and Pollution.

A. A person may not pollute a WQMA.

B. A person shall remove refuse and personal effects brought into a WQMA, including, but not limited to:

- (1) Bottles and cans;
- (2) Signs, handbills and posters;
- (3) Unapproved trail markers and signs; and
- (4) Human or animal waste.

21.02.04.20

.20 Intoxicants.

A person may not:

A. Smoke in a WQMA, except:

(1) On a paved road; or

(2) In a parking area.

B. Possess or consume an alcoholic beverage in a WQMA.

21.02.04.21

.21 Vehicles and Parking.

A. A person may not operate a motorized vehicle on an unpaved woods road, except:

- (1) A designated patrol vehicle;
- (2) A designated emergency vehicle; or
- (3) A contractor working on behalf of the City of Baltimore.

B. A person may not:

- (1) Block:
 - (a) A woods road entrance with a vehicle; or
 - (b) A gate or public access with a vehicle.
- (2) Park in violation of a posted sign or where otherwise prohibited.

21.02.04.22

.22 Vending.

A person may not engage in the following activities in a WQMA without the written permission of the City of Baltimore Board of Estimates after making a request to the Director:

- A. Selling goods or services;
- B. Renting goods or services; or
- C. Advertising goods or services.

Administrative History

Effective date: _____